

22STCV02574 22STCV02574

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-08-03

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Case Number: 22STCV02574 Hearing Date: August 3, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

22STCV02574

CYNTHIA

D. BROWN-LEE vs GUY

August

3, 2026

8:30

AM

NATURE OF PROCEEDINGS:

2 TO 4 INVESTMENTS, LLC'S REQUEST FOR ENTRY OF JUDGMENT AGAINST CYNTHIA D.

BROWNLEE aka CYNTHIA DENISE BROWN, KENNETH LUNDY AKA KENNEY LUNDY AND LUNDY
PROPERTY MANAGEMENT.

RULING:

The Court continues the Cross-Complainant's Request for Default Prove-up, to be heard with trial set for September 22, 2026, at 9:30 a.m.

ANALYSIS:

By request filed July 9, 2026, Cross-Complainant 2 TO 4 INVESTMENTS, LLC advocates a Default Judgment on the Cross-Complaint.

Because the Cross-Complaint alleges Quiet Title as to residential property, a live evidentiary hearing is required. (See Code Civ. Proc., § 764.010; Ridec LLC v. Hinkle (2023) 92 Cal.App.5th 1182, 1196 (“courts are split as to whether this requires an evidentiary hearing at which a defaulted defendant may participate....”); Nickell v. Matlock (2012) 206 Cal.App.4th 934, 942, 947 (“section 764.010 precludes a traditional default prove-up in quiet title actions and imposes an absolute ban on a ‘judgment by default’ in such actions.”); Harbour Vista, LLC v. HSBC Mortg. Services Inc. (2011) 201 Cal.App.4th 1496, 1507 (“Default judgment ... seems not to be an option for quiet title cases.”); Super. Ct. LA County, Local Rules, rule 9.11(b).)

And since the Second Amended Complaint (SAC) claims title to the same real property and is still pending without resolution, no Default Judgment should be filed until that portion of the case is resolved.

A separate Default Judgment sometimes is not properly entered on a cross-complaint. (Code Civ. Proc., § 585, subd. (e) [“no judgment may separately be entered on that cross-complaint unless a separate judgment may, in fact, be properly awarded on that cross-complaint and the court finds that a separate judgment on that cross-complaint would not substantially delay the final disposition of the action between the parties.”]; Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2026) § 5:270.) Under the “one final judgment rule,” ordinarily, a judgment must resolve a cross-complaint and the complaint, although there are exceptions. (Safety Net Services v. Eco Safe Systems USA, Inc. (2012) 209 Cal.App.4th 1118,

1135-1136 [under the circumstances, the judgment on a cross-complaint was a final, appealable judgment since the complaint was a sufficiently independent action].) Also, inconsistent default and trial judgments are to be avoided. (AMF Pinspotters, Inc. v. Peek (1970) 6 Cal.App.3d 443, 446; McKenzie v. City of Thousand Oaks (1973) 36 Cal.App.3d 426, 434; Cal. Rules of Court, rule 3.1800(a)(7).)